

2022 SCC OnLine TS 2894

In the High Court of Telangana at Hyderabad
(BEFORE A. ABHISHEK REDDY AND JUVVADI SRIDEVI, JJ.)

Neppaili Swathi ... Petitioner;

Versus

State of Telangana, Rep. by its Principal Secretary,
Home Department and Others ... Respondents.

Writ Petition No. 34420 of 2022

Decided on November 3, 2022

Advocates who appeared in this case:

Counsel for the Petitioner : Sri. Nageshwar Rao Pujari

Counsel for the Respondent Nos. 1 to 4 : AGP for Home the Advocate
General

Counsel for the Respondent No. 5 : Sri. K.V. Shekar

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue an order especially in the nature of Writ of Habeas Corpus directing the respondent No. 4 to produce my children i.e., Kumari Neppalli Shradda now aged 7 years and Master Neppalli Krishan Tejansh Kumar now aged about 2 years, who are allegedly detained with respondent no. 5 before this Hon'ble Court and subsequently release them from the illegal detention of respondent No. 5 by declaring their detention by the respondent No. 5 as illegal and arbitrary and against the Constitution of India.

IA No. 1 OF 2022

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the respondent no. 4 to produce my children i.e., Kumari Neppalli Shradda now aged 7 years and Master Neppalli Krishan Tejansh Kumar now aged about 2 years, who are illegally detained with respondent No. 5 before this Hon'ble Court pending disposal of this writ petition.

The Order of the Court was delivered by

A. ABHISHEK REDDY, J.:— In the present Writ Petition, the petitioner is seeking to issue directions to the respondent No. 4 to produce before this Court her children viz., Kumari Neppalli Shradda, aged about 7 years, and Master Neppalli Krishan Tejansh Kumar, aged about 2 years, who are illegally detained by the respondent No. 5, who is the husband of the petitioner.

2. Learned counsel appearing on behalf of the petitioner has stated that even though the petitioner is not putting forth the argument that the children are in illegal custody of the respondent No. 5, but her visitation rights as the mother of the children cannot be denied. Further, the learned counsel has stated that the petitioner may be granted permission to visit her children viz., Kumari Neppalli Shradda and Master Neppalli Krishan Tejansh Kumar. The learned counsel has relied on the judgment of the Hon'ble Supreme Court in *Vivek Singh v. Romani Singh*¹.

3. Per contra, the learned counsel appealing on behalf of the respondent No. 5 has vehemently opposed the very maintainability of the present Writ Petition and stated that the present Writ Petition is liable to be dismissed solely on the ground that the petitioner has suppressed material facts and approached this Court with unclean hands. That even though the petitioner was aware of the passing of the order dated 29.12.2021 passed by the learned XVI Additional District and Sessions Judge-cum-III Additional Family Judge, Malkajgiri, in I.A. No. 460 of 2021 in O.P. No. 841 of 2021, restraining the petitioner and her men, servants, representatives, agents from disturbing the respondent No. 5 in respect of the custody of the children and the said order has been extended from time to time, and the petitioner herself has filed G.W.O.P. No. 4 of 2022 in the Court of XV Additional District Judge-cum-Judge, Family Court, Ranga Reddy District at Kukatpally, for custody of the Wards, under Sections 7 to 10 and 25 of Guardian and Wards Act, 1890, the petitioner has suppressed the same and filed the present Writ Petition. Further, the learned counsel has stated that the petitioner herself has left the marital home leaving the respondent No. 5 and the children. That the Court below, duly taking into consideration the fact that the petitioner has on her own left the marital home and is not leading a proper life, has passed the order dated 29.12.2021 in I.A. No. 460 of 2021 in O.P. No. 841 of 2021 restraining the petitioner from disturbing the respondent No. 5 in respect of his physical custody of the children. Further, the learned counsel appearing on behalf of the respondent No. 5 has stated that the petitioner having filed GWOP. No. 4 of 2022 in the Court of XV Additional District Judge-cum-Family Court Judge, Ranga Reddy District at Kukatpally, has to necessarily await the decision of the said Court, but, she cannot bypass the said Court and pursue a parallel proceeding for the very same relief by filing the present Writ Petition. The same amounts to abuse of process of the Court, therefore, prayed this Court to dismiss the present Writ Petition.

4. Admittedly, in the present case, the respondent No. 5 has filed F.C.O.P. No. 841 of 2021 in the Court of XVI Additional District Judge-cum-Judge, Additional Family Court, at Malkajgiri, for divorce, and the

Court below has passed the order dated 29.12.2021 in I.A. No. 460 of 2021 in F.C.O.P. No. 841 of 2021 restraining the petitioner from disturbing the respondent No. 5 in respect of the custody of the children. It is also an admitted fact that the petitioner has filed G.W.O.P. No. 4 of 2022 in the Court of XV Additional District Judge-cum -Family Court Judge, Ranga Reddy District at Kukatpally. Both the cases are pending adjudication on merits and contested by both the parties. Even though various allegations and counter allegations are made by both the petitioner and the respondent No. 5 against each other, this Court is not inclined to go into the veracity or otherwise of the same.

5. Having regard to the above, irrespective of the allegations made by the petitioner and the respondent No. 5 against each other, this Court is of the opinion that love and affection of both the parents is necessary for the mental well-being and all round development of the children, therefore, this Court grants visitation rights to the petitioner on 3rd Sunday of every month from evening 4 : 00 p.m. to 6 : 00 p.m. Irrespective of the allegations made by the respondent No. 5 against the petitioner, the fact remains that the children are the ultimate sufferers in the ongoing tussle between the parents. The love, affection and care of the mother cannot be denied to the children on account of the differences between the parents. This is only an interim arrangement made pending final decision in the I.A. filed along with G.W.O.P. No. 4 of 2022. The Court below is directed to dispose of the interim application, if any made by the petitioner, in G.W.O.P. No. 4 of 2022, on its own merits, as expeditiously as possible, preferably, within a period of two (2) months from the date of receipt thereof, without being influenced by any of the observations made in the present order.

6. Accordingly, this Writ Petition is disposed of.

7. Miscellaneous applications, if any pending, shall stand closed. There shall be no order as to costs.

¹ (2017) 3 SCC 231